

20GDCV00582 20GDCV00582

County: los-angeles

Division: Civil Law and Motion

Department: E

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The Court's tentative is to

GRANT the motion to amend the judgment.

The Court notes that motions

to amend judgments pursuant to CCP § 187 are to be granted with "great liberality." (Relentless Air Racing, LLC v. Airborne Turbine Ltd.

Partnership (2013) 222 Cal.App.4th 811, 815.)

The Court is inclined to

overrule the defendant's evidentiary objections. The Court is applying the relevant tests and, if it is not reversible error, some amount of common sense.

R Motor appears to have been

funded and controlled through IC Manage, Inc., run by R Motor's principals, Drako and Sikand. IC appears to have been R Motor's sole funder. It appears three million dollars were transferred from IC to R Motor over the course of 33 transfers. It appears R Motors had little independent existence in terms of its own reserves or its own place of business, personnel, etc.

And, yes, the Court is deeply

troubled by the fact that R Motor appears to have filed for voluntary dissolution *six days after the judgment* in this case. Perhaps there's a perfectly good explanation for that. The Court has not seen it

yet.

To amend the judgment in a situation such as this, with an alleged alter ego, the creditor must establish three things: (1) that the alter ego shares such a unity of interest and ownership with the judgment debtor that their separate personalities no longer exist; (2) that an inequitable result will follow if the debtor's acts are treated as its own alone; and (3) that the added party controlled the underlying litigation and was thereby virtually represented in it. (*Relentless*, supra, 222 Cal.App.4th at pp. 815–816.) On this record, the Court is inclined to find that the creditor has in fact made these three showings.

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